

this particular affirmative defense is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit 1**, RFAs Nos. 1 through 13.

Nonetheless, the Court concludes here that the admissions made to the effect that “[t]he principal amount of \$10,548.81 due set forth in the Complaint filed in this matter is correct” and “[e]very statement or allegation contained in Plaintiff's Complaint is true and correct” necessarily encompass an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Common Counts (1st Cause of Action). As to the 1st Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Account Stated. The Court need not consider the other alternative theories of liability.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff's 1st Cause of Action.
3. Defendant became indebted in the amount of \$10,548.81 on the subject credit card account, which amount is due and owing to Plaintiff.

#### Costs

The moving papers seek an award of recoverable costs in the sum of \$777.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

5. 9:00 AM CASE NUMBER: L24-08852  
CASE NAME: TWO JINN, INC. VS. SOPHIA GARCIA  
\*HEARING ON MOTION IN RE: MOTION TO DEEM FACTS ADMITTED FILE BY PLN ON 08/28/2025  
FILED BY: TWO JINN, INC.

**\*TENTATIVE RULING:\***

Plaintiff Two Jinn, Inc. (“Plaintiff”) filed a Motion to Deem Facts as Admitted or in the Alternative to Compel Responses and Impose Monetary Sanctions on August 28, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

**Background**

Plaintiff served Defendant Sophia Garcia (“Defendant”) with a Requests for Admission (Set One). See Declaration of Nathan A. Melendrez filed August 28, 2025 (“Supporting Declaration”), ¶3 and **Exhibit A** thereto (the “RFAs”). The RFAs were served on April 29, 2025 by mail. *Id.* at ¶3 and **Exhibit A** [attached Proof of Service dated April 29, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before June 3, 2025 (30 days from and after April 29, 2025 was May 29, 2025 and five calendar days thereafter fell on June 3, 2025). No responses were received by that deadline. See *id.* at ¶3. Despite meet and confer efforts, no responses were received through the time of the filing of the motion. See *id.* at ¶¶4-5 and **Exhibit B**.

**Analysis**

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. Plaintiff engaged in meet and confer efforts and Defendant did not respond to those

communications and did not provide responses to the RFAs.

4. No opposition or other responsive pleadings by Defendant have been filed with the Court.

#### Sanctions

1. Defendant's failure to respond to the RFAs even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. Defendant's failure to respond to meet and confer efforts regarding the RFAs constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).
3. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that Defendant did not act with substantial justification.
4. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(c).

#### Disposition

The Court further finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion papers. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the hearing information at the time of service or if separate notice of the hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Motion to Deem Admissions is GRANTED, as follows:
  - a. The truth of the facts recited in RFA Nos. 1 through 3 and 5 through 18 are DEEMED ADMITTED by Defendant.
  - b. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 4, is DEEMED ADMITTED by Defendant.
  - c. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$310.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration. The Monetary Sanctions shall be paid within

thirty (30) days from notice of entry of this order.

3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L24-09342

CASE NAME: WELLS FARGO BANK, N.A. VS. MARTIN GONZALEZ

\*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSION AND NONAPPEARANCE FILED BY PLN ON 08/19/2025

FILED BY: WELLS FARGO BANK, N.A.

**\*TENTATIVE RULING:\***

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion to Deem Requests for Admissions Admitted on August 19, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

#### Background

Plaintiff served Defendant Martin Gonzalez (“Defendant”) with a Requests for Admission (Set One). See Declaration of Douglas Agne filed August 19, 2025 (“Supporting Declaration”), ¶1 and **Exhibit A** thereto (the “RFAs”). The RFAs were served on February 27, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated February 27, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before April 3, 2025 (30 days from and after February 27, 2025 was March 29, 2025 and five calendar days thereafter fell on April 3, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶12.

#### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section